



CHAPTER xxvi.

An Act to confirm a Provisional Order of the Minister of Health relating to the city of Bristol.

[30th July 1948.]

WHEREAS under the provisions of the Public Health Act 38 & 39 Vict. 1875 the Minister of Health has made a Provisional^{c.} 55. Order which needs confirmation by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order of the Minister of Health which is set out in the Order in schedule to this Act is hereby confirmed and shall have full schedule confirmed validity and force.
2. This Act may be cited as the Ministry of Health Provisional Short title. Order Confirmation (Bristol) Act 1948.

SCHEDULE.

CITY OF BRISTOL.

Provisional Order partially altering a Provisional Order.

WHEREAS the city of Bristol is a borough of which the lord mayor aldermen and burgesses acting by the council (in this order called "the Corporation") are the local authority for the purposes of the Public Health Act 1875 and there is in force in the city the Clifton and Durdham Downs (Bristol) Act 1861 (in this order called "the Act of 1861") as amended by subsequent enactments:

24 & 25 Vict.
c. xiv.

4 Edw. 7.
c. ccxxiii.
16 & 17 Geo. 5.
c. xcix.

And whereas by section 10 of the Act of 1861 a committee called the Downs Committee was constituted for the management of the Clifton and Durdham Downs and by section 11 of the said Act as amended by section 67 of the Bristol Corporation Act 1904 and section 183 of the Bristol Corporation Act 1926 the Corporation were authorised to expend in any one year any sum not exceeding one thousand pounds to be raised and expended in accordance with the provisions of the Act of 1861:

26 Geo. 5. &
1 Edw. 8.
c. xxxiv.

And whereas under the Bristol Order 1936 which was confirmed by the Ministry of Health Provisional Order Confirmation (Bristol) Act 1936 the Corporation are authorised if they think fit to pay to the Downs Committee in any one year in addition to the sum mentioned in the said Act of 1926 any sum or sums not exceeding one thousand pounds to be applied by the Downs Committee in carrying the Act of 1861 into execution:

And whereas the Corporation have applied to the Minister of Health (in this Order called "the Minister") for the issue of a Provisional Order to alter or amend the Bristol Order 1936 in the manner following:

Now therefore the Minister in pursuance of the powers given to him by sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

Short title
and com-
mencement.

Increase of
expenditure
on Clifton and
Durdham
Downs.

1. This Order may be cited as the Bristol Order 1948 and shall come into operation on the date of the Act of Parliament confirming it.

2. Section 2 of the Bristol Order 1936 shall have effect as if—

- (a) the words "if they think fit" and the words "in any one year" were omitted;
- (b) for the words "not exceeding one thousand pounds" there were substituted the words "which the Corporation may think fit";

(c) the following proviso. were added at the end thereof :—

“ Provided that the Corporation shall not without the consent of the Minister pay to the said committee under this section in any one year a greater sum than the difference between one thousand pounds and one-half of the product of a penny rate as ascertained or estimated for the purpose of subsection (2) of section 9 of the Rating and Valuation Act 1925.”

15 & 16 Geo. 5.
c. 90.

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Ministry of Health
Provisional Order Confirmation
(Bristol) Act, 1948.

11 & 12 GEO. 6.

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